

24STCV31970 24STCV31970

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV31970 Hearing Date: August 17, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Dolores Kent

;

Plaintiff,

vs.

Lydia Long Li Perkins

, et al.,

Defendants.

Case No.:

24STCV31970

Hearing Date:

August 17, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
for Terminating Sanctions

MOVING PARTY: Plaintiff/Cross-Defendant Dolores
Kent

RESPONDING
PARTY: No response.

Motion for
Terminating Sanctions

The court considered the moving
papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Plaintiff and
cross-defendant Dolores Kent ("Plaintiff") moves the court for an order (1)
imposing terminating sanctions against defendant and cross-complainant Lydia
Long Li Perkins ("Defendant"); and (2) awarding monetary sanctions in the
amount of \$1,837.89.

If a party
engages in a misuse of the discovery process, the court may impose monetary,
issue, evidence, or terminating sanctions.¿ (Code Civ. Proc., § 2023.030.)¿ "Misuses of the discovery process
include, but are not limited to, the following: [¶¶] (d) Failing to respond or to
submit to an authorized method of discovery. [¶¶] (g) Disobeying a court order
to provide discovery."¿ (Code Civ. Proc., § 2023.010, subs. (d), (g).)¿ "When exercising its discretion
to determine which form of sanction is most appropriate for a discovery violation,
a trial court should consider various factors, including 'the importance of the
materials that were not produced—from the perspective of the offended party's

ability to litigate the case—and what prejudice, if any, the offended party suffered....” (Victor Valley Union High School District v. Superior Court of San Bernardino County (2023) 91 Cal.App.5th 1121, 1158.)

First, the court finds that Plaintiff has shown that Defendant has violated a court order to provide discovery.

On April 6, 2026, the court issued an order that (1) granted Plaintiff’s motions to compel responses to requests to produce, form interrogatories, and special interrogatories, (2) granted Plaintiff’s motion for order establishing admissions of the truth of the matters stated in requests for admissions; (3) granted Plaintiff’s request for monetary sanctions, but not terminating sanctions; and (4) ordered Defendant to serve on Plaintiff full and complete verified responses, without objections, to Plaintiff’s Requests to Produce, Set One, Form Interrogatories, Set One, and Special Interrogatories, Set One, and to produce documents responsive to the Requests to Produce within 20 days of the date of the April 6, 2026 order. (April 6, 2026 order, p. 5.) Plaintiff served Defendant with the court’s April 6, 2026 ruling on April 7, 2026. (April 7, 2026 Notice of Ruling.) However, Plaintiff has presented evidence showing that Defendants had not, as of the date that Plaintiff filed this motion on May 20, 2026, served responses to the subject discovery as ordered by the court. (Siegel Decl., ¶ 5.)

Thus, the court finds that Plaintiff has shown that Defendant violated the court’s April 6, 2026 order to provide discovery. Defendant did not file opposition papers or other evidence with the court (1) disputing her failure to comply with the court’s order, or (2) showing that responses have since been served.

Second, the court finds that Defendant’s failure to serve the requested discovery is prejudicial to Plaintiff because the demands sought basic information pertaining to the allegations in the Complaint and Cross-Complaint. (E.g., Siegel Decl. ISO Mot. Compel Special Interrogs. Ex. A.) The absence of these materials precludes Plaintiff from pursuing her case in chief or mounting a defense to the cross-complaint. (Victor Valley Union High School District, *supra*, 91

Cal.App.5th at p. 1158 [court should consider the importance of materials not produced and what prejudice has been suffered, if any].)¿

Finally, the court has considered that it has already imposed the less severe sanction of monetary sanctions against Defendants, which has not produced Defendants' compliance with the discovery rules or the court's order. (Victor Valley Union High School District, supra, 91 Cal.App.5th at p. 1158; April 6, 2026 Order, p. 5.)

Based on the evidence presented, and in light of the fact that Defendant did not file opposition papers disputing her conduct or showing their belated compliance, the court finds that (1) Defendant has engaged in conduct that is a misuse of the discovery process (i) by failing to respond or submit to an authorized method of discovery, and (ii) by disobeying a court order to provide discovery, (2) Plaintiff has been prejudiced by Defendant's misconduct, and (3) the evidence shows that the less severe sanction of monetary sanctions has not produced compliance with the discovery rules. (Code Civ. Proc., § 2023.010, subds. (d), (g).)

The court therefore finds that it is appropriate, and exercises its discretion, to impose terminating sanctions against Defendant. (Code Civ. Proc., § 2023.030, subd. (d)(1).)

The court also grants Plaintiff's request for monetary sanctions against Defendant in the amount of \$1,060.00. (Code Civ. Proc., § 2023.030, subd. (a); Siegel Decl., ¶ 6 [2 hours of attorney time expended at \$500 per hour + \$60 filing fee for the moving papers].)

ORDER

The court GRANTS plaintiff Dolores Kent's motion for terminating sanctions.

The court orders that the First Amended Answer filed March 14, 2025 by defendant Lydia Long Li Perkins is stricken. (Code Civ. Proc., § 2023.030, subd. (d)(1).)

The court orders

that the Cross-Complaint filed February 19, 2025 by cross-complainant Lydia Long Li Perkins is dismissed.

The court orders

defendant Lydia Long Li Perkins to pay monetary sanctions to plaintiff Dolores Kent in the amount of \$1,060.00 within 30 days of the date of this order.

The court orders Plaintiff

Dolores Kent to file a Request for Entry of Default (Judicial Council Form CIV-100) as to defendant Dolores Kent no later than August 24, 2026.

The court orders plaintiff

Dolores Kent to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 17, 2026

Robert B. Broadbelt III

Judge of the Superior Court